

MEMORANDUM

TO: Housing and disability advocacy organizations and their counsel

FROM: Nicholas Gill, J.D. candidate, University of Arizona James E. Rogers College of Law; author, *Duty Without Data: Disability Fair Housing and the Record-Dependent Right* (Arizona Law Review, forthcoming 2026)

DATE: July 12, 2026

RE: Public-comment window on HUD Form HUD-27061 (OMB Control No. 2535-0113) closes Tuesday, August 11, 2026

The situation. In September 2022, HUD proposed updating Form HUD-27061 — its one-page, cross-program demographic form — “to collect protected class data as required by the Fair Housing Act and HUD regulations at 24 CFR 121,” authorities whose categories include disability (“handicap”) and family characteristics. 87 Fed. Reg. 58,524, 58,525. The form approved in 2023 collects race and ethnicity only; the 30-day notice contains no occurrence of “disability,” “handicap,” “protected class,” or “Fair Housing Act,” and the only change HUD’s Supporting Statement explained was a clerical field relabeling. 88 Fed. Reg. 5,370. On June 12, 2026, HUD proposed renewing the narrowed form unchanged — while still describing it as collecting “race, ethnicity, and other protected class data . . . as required by . . . the Fair Housing Act.” 91 Fed. Reg. 35,697, 35,698. The burden estimate — 14,375 respondents, 8,625 annual hours — is identical across all three notices, which forecloses respondent burden as the disclosed reason for the narrowing. As of the archived record cutoff of July 8, 2026, HUD’s June 12, 2026 renewal notice remains pending and OMB has posted no disposition; the collection’s displayed expiration date of June 30, 2026 has passed. Check the official docket for anything later.

Why comment now. Comments are due August 11, 2026 (regulations.gov Docket No. HUD-2006-0214). HUD must evaluate the comments it receives, 44 U.S.C. 3506(c)(2)(A), and its submission to OMB is expected to summarize and respond to substantive issues raised, 5 C.F.R. 1320.5(a)(1)(iv), 1320.8(d). The 2022 window drew exactly one substantive comment (SAGE, through Jones Day). On a docket this thin, a substantive organizational comment cannot be lost in a pile — and everything filed by August 11 becomes part of the administrative record that a planned rulemaking petition under 5 U.S.C. 553(e), and any court that later reviews HUD’s answer, will read.

The ask. File a comment before August 11. A drafted organizational template is published for adaptation, and counsel can adapt it in an afternoon. Its requests are record-facing and support a collection HUD itself proposed: address the 2022 proposal and the 2023 omission on the record; address 42 U.S.C. 3608(e)(6), 24 C.F.R. Part 121, and Section 504 / 24 C.F.R. Part 8; address privacy-preserving design alternatives and the burden arithmetic. Then add one to three paragraphs only your organization can write — a matter where the paper trail failed, a data request you could not answer, a program decision made blind. Even a two-paragraph comment is evaluable.

What filing does not do. A PRA comment is routine administrative participation. It is not litigation, joins no lawsuit, and commits the organization to nothing after August 11. It supports a data collection HUD itself proposed in 2022 and asks the agency to engage its own authorities — or explain, on the record, why not.

Materials (all public).

- How-to, record, and both comment tracks: nickgillarizona.github.io/Duty-Without-Data/comment/
- Adaptable template: [github.com/NickGillArizona/Duty-Without-Data \(action/2026_comment_template.md\)](https://github.com/NickGillArizona/Duty-Without-Data/blob/main/action/2026_comment_template.md)
- Comment form: www.regulations.gov/commenton/HUD-2006-0214-0010
- Worked example (the author’s filed comment): www.regulations.gov/comment/HUD-2006-0214-0011

Prepared by a J.D. candidate, not an attorney, for adaptation by an organization’s own counsel; drafted with LLM assistance and reviewed by the author; not legal advice. Questions, corrections, or a fifteen-minute walkthrough: nickgill@arizona.edu.